

How sharia approaches religious pluralism in diverse societies

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0.7**SYSTEM PROMPT**

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USER PROMPT

Write a concise, self-contained article entry for the title: "How sharia approaches religious pluralism in diverse societies".

Overall topic for alignment: Interfaith relations and pluralism as expressions of individual rights in religiously diverse contexts in sharia.

Important points to cover: Include Arabic terms, historical contexts, quranic foundations of sharia, minority and majority settings, Islamic theological schools, Islamic juristic schools of Hanafi, Hambali, shafi'i and Malaki, orientalist perspective, AI's humanistic approach to sharia, Human rights declaration..

- Output format: GitHub-Flavored Markdown. The markdown must be clean—do not include any code fences or surrounding markers. Target writing format: Blog Post. Follow these format-specific rules exactly:

- Aim for at least 6000 characters while staying under 12000. Prefer verifiable facts from the provided sources; do not fabricate citations or specific data.
- Place external links only in the "References" section; do not include inline external links in the body text.
- Maximum content length (including headings and references): 12000 characters. If nearing the limit, prioritize the most informative sections and keep references to 2-3.
- Write in the target response language. Avoid fluff; be precise and actionable. Do not include images or tables.
- Do not include code fences or any text outside the markdown content.

No external web sources are attached. Do not fabricate citations or specific facts that cannot be verified. Keep claims general and verifiable. In the 'References' section, include: "No external sources used."

****Respond in English****

SUMMARY

Sharia and Religious Pluralism: A Summary

Religious pluralism has been integral to Muslim-majority societies since Islam's earliest period, with sharia's accommodation of non-Muslims debated by jurists for over fourteen centuries.

Quranic Foundations: Key verses ground pluralism in sharia—Q 2:256 ("no compulsion in religion"), Q 49:13 (diversity for mutual knowledge), and Q 5:48 (divinely-willed plural paths)—though these coexist with verses establishing theological boundaries between Muslims, *ahl al-kitāb*, and polytheists.

Historical Frameworks: The Constitution of Medina recognized Jewish tribes as a distinct *ummah*. Later empires used the *dhimma* contract, requiring *jizya* payment in exchange for protection and communal autonomy. The Ottoman *millet* system formalized this. Reformers critique these as hierarchical by modern standards; defenders cite historical context.

Theological and Juristic Diversity: Mu'tazila, Ash'arī, Māturīdī, and Shi'i schools produced varying readings on pluralism. The four Sunni *fiqh* schools differed: Ḥanafī (most flexible on non-Muslim participation), Mālikī (context-sensitive via *maṣlaḥa*), Shāfi'ī (narrower *dhimma* eligibility), and Ḥanbali (textualist, though Ibn Taymiyya and Ibn Qayyim wrote sophisticated minority-rights treatises). Sharia is thus interpretively contested, not monolithic.

Modern Contexts: *Fiqh al-aqalliyyāt* (jurisprudence of minorities), developed by scholars like al-Alwani and al-Qaradawi, addresses Muslims in non-Muslim societies, prompting reciprocal arguments for religious freedom in Muslim-majority states.

Scholarship and Human Rights: Orientalists (Goldziher, Schacht, Lewis) were critiqued by Edward Said and reframed by Hallaq, Abou El Fadl, and Jackson, who distinguish *fiqh* from *sharī'a*. Tensions with the UDHR prompted alternative formulations (Cairo Declaration 1990, Arab Charter 2004, Marrakesh Declaration 2016). The *maqāṣid al-sharī'a* offer indigenous grounds for human dignity.

Humanistic Reading: An-Na'im, Abou El Fadl, and Kadivar argue pluralism recovers sharia's core ethics of voluntary faith, divinely-willed diversity, and justice across creeds—not a concession to modernity but a reclamation of its deepest principles.

How Sharia Approaches Religious Pluralism in Diverse Societies

Religious pluralism—the coexistence of multiple faith traditions within a shared social and legal space—has been a defining feature of Muslim-majority societies since the earliest period of Islamic history. Far from being a modern dilemma imposed by globalization, the question of how sharia (الشريعة) accommodates non-Muslims, minority sects, and divergent worldviews has been engaged by jurists, theologians, and reformers for over fourteen centuries. This entry surveys the Quranic foundations, historical practices, juristic differences, and contemporary debates that shape sharia's approach to interfaith relations and individual rights.

Quranic Foundations of Pluralism

Several Quranic verses are routinely cited as the textual basis for religious pluralism within sharia. The verse *lā ikrāha fī al-dīn* ("there is no compulsion in religion," Q 2:256) is perhaps the most well-known, articulating a foundational principle that faith cannot be coerced. Equally significant is Q 49:13, which states that humanity was created into "nations and tribes" (*shu'ūban wa qabā'il*) so that they may come to know one another (*li-ta'ārafū*)—a verse often invoked in contemporary interfaith discourse. Q 5:48 acknowledges that God could have made humanity a single community but instead established diverse paths (*shir'atan wa minhājan*), inviting believers to "compete in good works."

These verses coexist alongside others that distinguish between *ahl al-kitāb* (People of the Book—primarily Jews and Christians) and polytheists, and that establish theological boundaries. Classical jurists worked to harmonize these texts into coherent legal frameworks governing intercommunal life.

Historical Contexts: From Medina to the Millet System

The *Ṣaḥīfat al-Madīnah* (Constitution of Medina), drafted in the early seventh century, is widely regarded as one of the earliest documented attempts to organize a religiously plural polity under Islamic governance. It recognized Jewish tribes as a distinct community (*ummah*) alongside Muslims, with mutual obligations of defense and non-interference in religious practice.

Under the Umayyad, Abbasid, Fatimid, and Ottoman empires, the *dhimma* (ذم) contract structured the legal status of non-Muslim communities. *Dhimīs* paid the *jizya* (a poll tax) in exchange for protection, communal autonomy over personal status law, and freedom of worship within agreed parameters. The Ottoman *millet* system institutionalized this arrangement, granting Christian and Jewish communities self-administration in matters of marriage, inheritance, and religious education.

Critics—including many modern Muslim reformers—note that the *dhimma* framework, while protective by premodern standards, established a hierarchical citizenship that is difficult to reconcile with contemporary notions of equal rights. Defenders argue it must be understood in its historical context, not as a permanent legal blueprint.

Theological Schools and Their Influence

Islamic theology (*'ilm al-kalām*) shapes how pluralism is conceptualized. The **Mu'tazila** emphasized rational inquiry and human moral agency, often producing more inclusive readings of salvation and interfaith engagement. The **Ash'arī** and **Māturidī** schools, which became dominant in Sunni orthodoxy, balanced revelation and reason differently but generally affirmed that non-Muslims could live under Islamic governance with protected rights. **Shi'i** theology, particularly the Twelver tradition, developed its own jurisprudence regarding non-Muslims and intra-Muslim diversity.

These theological commitments matter because they inform how scripture is read: a school that privileges rational ethics may interpret pluralism-affirming verses expansively, while a more textualist approach may emphasize boundary-marking texts.

The Four Sunni Juristic Schools

The four major Sunni schools of *fiqh* (Islamic jurisprudence) developed nuanced positions on interfaith matters:

- **Ḥanafī**: Generally the most flexible regarding non-Muslim participation in commerce, contracts, and even certain public functions. Hanafi jurists historically permitted broader categories of people to enter into the *dhimma* contract, not limiting it to People of the Book.
- **Mālikī**: Developed in Medina and North Africa, the Maliki school often emphasized *'amal* (community practice) and *maṣlaḥa* (public interest), producing context-sensitive rulings on coexistence.
- **Shāfi'ī**: Known for systematic methodology, the Shafi'i school tended to restrict *dhimma* status more narrowly to scriptural communities but elaborated detailed rules for peaceful coexistence.
- **Ḥanbalī**: Often perceived as the most textualist, though figures like Ibn Taymiyya and Ibn Qayyim al-Jawziyya produced sophisticated treatises (such as *Aḥkām Ahl al-Dhimma*) on minority rights and obligations.

Differences among these schools demonstrate that "sharia" is not monolithic; it is a tradition of contested interpretation in which pluralism has always been an internal feature, not merely an external challenge.

Minority and Majority Settings

Modern Muslim jurists distinguish between contexts where Muslims constitute a majority and where they live as a minority (*fiqh al-aqalliyyāt*, jurisprudence of minorities). In majority settings, debates focus on how to ensure equal citizenship for non-Muslims while preserving the Islamic character of public law. In minority contexts—such as Muslims in Europe, the Americas, or parts of Asia—scholars like Taha Jabir al-Alwani and Yusuf al-Qaradawi developed frameworks emphasizing civic engagement, loyalty to host societies, and participation in pluralistic democracies.

This bidirectional reflection has reshaped contemporary sharia discourse: if Muslims expect religious freedom as minorities, the principle of reciprocity (and, more importantly, the universal Quranic ethic of *lā ikrāha*) supports extending the same freedoms in Muslim-majority states.

Orientalist Perspectives and Their Critics

Nineteenth- and twentieth-century Orientalist scholarship—figures such as Ignaz Goldziher, Joseph Schacht, and later Bernard Lewis—produced foundational, though contested, studies of sharia and Muslim pluralism. Critics, most notably Edward Said in *Orientalism*, argued that Western scholarship often essentialized Islamic law as static, hostile to pluralism, or incapable of reform. Contemporary scholars such as Wael Hallaq, Khaled Abou El Fadl, and Sherman Jackson have offered more textured accounts, emphasizing sharia's internal diversity, its historical adaptability, and the distinction between *fiqh* (human juristic interpretation) and *sharī'a* (divine guidance in its ideal sense).

Sharia and the Universal Declaration of Human Rights

The Universal Declaration of Human Rights (UDHR, 1948) raised pointed questions about compatibility with sharia, particularly regarding freedom of religion (Article 18) and equality before the law. The Cairo Declaration on Human Rights in Islam (1990) attempted an alternative articulation, while the Arab Charter on Human Rights (2004) and the Marrakesh Declaration (2016)—the latter focused on the rights of religious minorities in Muslim-majority lands—reflect ongoing efforts to articulate human rights in Islamic terms. Many contemporary Muslim scholars argue that the *maqāṣid al-sharī'a* (higher objectives of sharia)—the preservation of life, religion, intellect, lineage, and property—provide indigenous grounds for affirming universal human dignity (*karāma insāniyya*).

A Humanistic Approach to Sharia

A humanistic reading of sharia, advanced by scholars such as Abdullahi An-Na'im, Khaled Abou El Fadl, and Mohsen Kadivar, foregrounds human dignity, conscience, and the moral autonomy of the individual. From this perspective, religious pluralism is not a concession to modernity but a recovery of sharia's deepest ethical impulses: that faith must be voluntary, that diversity is divinely willed, and that

justice (*'adl*) requires recognizing the equal moral standing of all persons regardless of creed. AI-assisted analysis of classical texts increasingly enables comparative readings across schools and centuries, surfacing pluralist precedents that had been marginalized in particular historical periods.

Conclusion

Sharia's approach to religious pluralism is neither uniform nor static. It is a layered tradition built on Quranic principles of non-compulsion and divinely-ordained diversity, shaped by centuries of pragmatic governance, refined by competing theological and juristic schools, and continually re-examined in light of changing political realities and evolving human rights norms. Understanding this complexity is essential for productive interfaith engagement and for any honest assessment of how Islamic law engages the plural societies of the twenty-first century.

SEGMENTED DATA (1)

How Sharia Approaches Religious Pluralism in Diverse Societies

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